

CASE SUMMARY

State v. Shakuntala

Ct. Case No. 50/2024 | PS Maurya Enclave | Court of the Additional Sessions Judge (Electricity), North-West District, Rohini Courts, Delhi

COURT	Court of the Additional Sessions Judge (Electricity), North-West District, Rohini Courts, Delhi
JUDGE	Sh. Prashant Kumar, Addl. Sessions Judge (Electricity)
DATE OF JUDGMENT	28 February 2026 (date of inspection / offence: 10 August 2023)
PARTIES	State (Tata Power Delhi Distribution Ltd.) v. Shakuntala D/o Sh. Amit Kumar Yadav, R/o Jhuggi No. C-123, E-Rickshaw Charging Station, Block QD, Pitampura, Delhi-110034
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
RESULT	Acquitted — complaint dismissed. The prosecution failed to establish a complete chain connecting the accused to the e-rickshaw charging operation. The accused stands acquitted of the charge under Section 135 of the Electricity Act, 2003.

CHARGE BEFORE THE COURT

Whether the accused Shakuntala dishonestly abstracted electricity to run an e-rickshaw charging station through an illegal tap from the licensee’s tyco box, so as to attract Section 135(1) of the Electricity Act, 2003; and whether the prosecution proved, by a complete chain of evidence, that the accused operated or controlled that abstraction.

FACTS

On 10 August 2023 at about 6.00 a.m., a TPDDL team inspected Jhuggi No. C-123 at an e-rickshaw charging station in Pitampura and alleged a direct theft: an illegal connection from the TPDDL tyco box at pole No. 508-49/25/1/3, using a two-core black aluminium wire for phase/neutral and a three-phase four-wire cable, carrying a load of 14.478 KW for non-domestic (e-rickshaw charging) use. An inspection report, seizure memo, 46 photographs and a CD with a Section 65B certificate were prepared. Three prosecution witnesses were examined — the raiding-team leader, the authorised representative and the photographer.

The defence and the Court identified a series of gaps: the complaint alleged the wire ran through the jhuggi to the charging station, but the inspection was of an open public area, not the jhuggi; no photograph showed the wire connected to the jhuggi; no public witness was examined; no e-rickshaw owner was identified or examined; there was no documentary proof of the e-rickshaws’ ownership; and there was no proof that the accused collected charges or otherwise controlled the operation. The Judge observed that the testimony of none of the witnesses inspired confidence.

REASONING OF THE COURT

HEADNOTE

The sole acquittal in the set. In a public-place theft resting on circumstantial evidence, the prosecution must build a chain so complete as to exclude every hypothesis but guilt. Inconsistent wire-routing, no photograph tying the wire to the accused's jhuggi, no e-rickshaw owner or public witness, and no proof that the accused collected charges left the chain broken; suspicion could not substitute for proof, and the accused was acquitted.

The presumption arises only after the prosecution proves the foundational facts. The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

The wire-routing was inconsistent and unphotographed. The complaint alleged the illegal wire ran through the accused's jhuggi to the charging station, yet the inspection was of an open public area, not the jhuggi, and not one of the 46 photographs showed the wire connected to the jhuggi — the very link between the accused's premises and the tap was missing.

No independent or beneficiary witness supported the operation. No public witness was examined though the site was public; no e-rickshaw owner was identified or examined; and there was no documentary proof of the e-rickshaws' ownership — on *Anoop Joshi*, the absence of available public witnesses raised, not lowered, the standard the prosecution had to meet.

Control and collection of charges were never proved. There was no evidence that the accused operated the charging point or collected charges; mere presence at a public place is not proof of running the operation. On *Hanumant Govind Nargundkar* and *Sujit Biswas*, the circumstances did not form a complete chain, and suspicion could not take the place of proof; on *Kali Ram*, the view favouring the accused had to be adopted.

The cumulative doubt entitled the accused to acquittal. With inconsistent and unphotographed wire-routing, no independent or e-rickshaw-owner witness, and no proof that the accused controlled the operation or collected charges, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Section 135 of the Electricity Act, 2003 was not brought home.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user's identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section 65B, or the officer's authority to complain is not proved — the presumption never arises. The ordinary rule then governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

HELD

The prosecution having failed to prove the foundational facts — inconsistent and unphotographed wire-routing, no independent or e-rickshaw-owner witness, and no proof that the accused controlled the operation or collected charges — the charge under Section 135 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

SIGNIFICANCE

The only acquittal in the set and the leading statement of the standard of proof — six authorities on circumstantial evidence and benefit of doubt. Four propositions stand out:

- **Public-place theft demands a complete circumstantial chain.** Where the tap is in a public area, the prosecution must connect it to the accused link by link (*Hanumant Govind Nargundkar*); a missing link acquits.
- **Suspicion is not proof.** The gap between 'may be true' and 'must be true' must be bridged by evidence (*Sujit Biswas*); mere presence will not do.
- **Unexamined beneficiaries and public witnesses tell against the prosecution.** No e-rickshaw owner, no public witness and no proof of collection of charges left the operation unattributed (*Anoop Joshi; Ramesh Harijan*).
- **Two possible views go to the accused.** Where the evidence permits an innocent explanation, the benefit of the doubt is the accused's (*Kali Ram; Mahender Singh Dahiya*).

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Kali Ram v. State of Himachal Pradesh</i> (1973) 2 SCC 808	Where two views are reasonably possible on the evidence, the one favouring the accused must be adopted; the presumption of innocence is not lightly displaced.	Relied on
<i>Hanumant Govind Nargundkar v. State of M.P.</i> AIR 1952 SC 343	In a case of circumstantial evidence the proved circumstances must form a chain so complete as to exclude every reasonable hypothesis save the guilt of the accused.	Relied on
<i>Sujit Biswas v. State of Assam</i> (2013) 12 SCC 406	Suspicion, however grave, cannot take the place of proof; the gap between 'may be true' and 'must be true' must be bridged by legal evidence.	Relied on

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>State (CBI) v. Mahender Singh Dahiya</i> (2011) 3 SCC 585	The chain of circumstances, including scientific and expert material, must be conclusive and point only to the guilt of the accused.	Relied on
<i>Ramesh Harijan v. State of U.P.</i> (2012) 5 SCC 777	Evidence must be appreciated with care; a finding cannot rest on testimony that does not inspire confidence.	Relied on
<i>Anoop Joshi v. State</i> Delhi HC	Where public witnesses were available but not joined, the prosecution must meet a higher standard to establish the recovery and inspection.	Relied on

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